

Plaintiffs present no triable issue as to fraud under Civil Code section 3294(c)(3). Fraud requires an intentional misrepresentation, deceit, or concealment of a material fact made with the intention of thereby depriving a person of property or legal rights, or otherwise causing injury. The allegedly false account Simarro gave to the investigating officer about stopping at the stop sign does not meet this definition. That statement was made after the collision had already occurred and therefore cannot have been made with the intent to cause the collision or the resulting property damage. Nor is there any evidence in the record that the false statement was made with the intent to deprive Plaintiffs of any legal rights. The false account is relevant to the malice analysis, as discussed *ante*, but it does not independently support a finding of fraud under Civil Code section 3294(c)(3).

E. Gross Negligence is Not the Standard for Punitive Damages.

Plaintiffs' opposition devotes considerable attention to the doctrine of gross negligence. (See generally MPA in OPPOSITION to Def MSJ.) Gross negligence, however, is not the operative standard for a punitive damages claim under Civil Code section 3294. Gross negligence has been defined as either an "extreme departure from the ordinary standard of conduct" or a "want of even scant care." (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1185-1186.) While gross negligence may exceed ordinary negligence in degree, it remains a negligence standard and does not require the willful and conscious disregard of the rights and safety of others that Civil Code section 3294 demands. As the court stated in *Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, "...mere negligence, even gross negligence is not sufficient to justify an award of punitive damages." (*Ebaugh*, 22 Cal.App.3d at 894 (emphasis in original).)

The Court's denial of this motion is based on the triable issues of material fact as to malice and oppression under Civil Code section 3294, not on Plaintiffs' gross negligence analysis.

F. Conclusion

Defendant's motion for summary adjudication is **DENIED**. The declaration of Paul Jacobs creates a triable issue of material fact as to whether Simarro's conduct constituted despicable conduct carried out with willful and conscious disregard of the rights and safety of others within the meaning of malice under Civil Code section 3294(c)(1), and oppression under Civil Code section 3294(c)(2).

8. 9:00 AM CASE NUMBER: C24-03556

CASE NAME: KILROY REALTY 303, LLC VS. LEROY QUAN

*HEARING ON MOTION IN RE: TO FILE RECORDS UNDER SEAL

FILED BY: QUAN, LEROY M.

*TENTATIVE RULING:

Defendant's motion for leave to file financial information under seal is unopposed and it is **granted**.

9. 9:00 AM CASE NUMBER: C25-00060

CASE NAME: MARIO ZITO VS. GRETCHEN LACAYO-CODUS

*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO FORM AND SPECIAL INTERROGATORIES

FILED BY: ZITO, MARIO ANTHONY

TENTATIVE RULING: